

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Moinul Islam Chowdhury

Civil Revision No. 2538 of 2012

Saleh Uddin Ahmed being dead his legal heirs
1(a) Mosammat Anwara Begum and others.

----Plaintiff-Appellant-Petitioners

=Versus=

Md. Alamgir and others

----Defendant-Respondent-Opposite Parties

Mr. A.M. Mahbubuddin, with
Ms. Naima Zaman, Advocates

-----For the Petitioners

Mr. Md. Mubarak Hossain, Advocate

----For the Opposite Party Nos.1 to 3

Heard on 17.01.2018 and
Judgment on 12.02.2018

At the instance of the present-plaintiff-appellant-petitioners, Saleh Uddin Ahmed being dead his legal heirs 1(a) Mosammat Anwara Begum and others, this Rule has been issued calling upon the opposite parties to show cause as to why the order dated 20.06.2012 passed by the learned Joint District Judge, 2nd court, Lakshmipur in Title Appeal No.33 of 2009 rejecting the prayer of the appellants to pass an order for using the voter list including voter number and date of birth of defendant No.6 (D.W.2, Shahida Begum) of the original suit as piece of evidence in the instant appeal should not be set aside.

The relevant facts for disposal of the Rule, *inter alia*, are that the present-petitioners as the plaintiffs filed the Title Suit No.131 of 2003

for declaration that the sale deed dated 03.08.1977 was forged and not binding upon the plaintiffs. The plaint contains that the predecessor of the plaintiffs purchased 16 decimals of land in different khatians through the registered sale deed No.6127 dated 02.07.1996 from defendant No.6. The defendant Nos.4-6, thereafter, disclosed the suit land described in the plaint was earlier transferred to the defendant Nos.1 and 2 vide sale deed No.9576 dated 03.08.1977. The plaintiffs' claimed the said deed was collusive and inoperative as the present-defendant-opposite party No.5 (defendant No.6) in the suit was a minor girl of 8/9 years old at the time of execution of the deed. The father of the defendant Nos.1 and 2 thereafter, transferred the property by a gift dated 13.09.1993 and also 19.02.1995.

The suit was contested by the present-opposite parties No.1-3 as the defendants, by filing a written statement denying the statements made in the plaint. After hearing the contesting parties, the learned trial court dismissed the suit. Being aggrieved the present-petitioners as the appellants preferred the Title Appeal No.33 of 2009 in the court of the learned District Judge, Lakshmipur and the appeal is pending before the learned Joint District Judge, court No.2, Lakshmipur where the present-petitioners filed an application under Order 41, Rule 27 of the Code of Civil Procedure for including voter list of the defendant No.6 (D.W.2, Shahida Begum) to determine her age as a piece of evidence.

After hearing the parties the learned appellate court below rejected the application by the impugned judgment and order dated 20.06.2012.

This revisional application has been filed under Section 115(1) of the Code of Civil Procedure challenging the legality of the said order and the present Rule has been issued thereupon.

Mr. A.M. Mahbub Uddin, the learned Advocate, appearing along with the learned Advocate Ms. Naima Zaman, for the present-petitioners submits that the learned appellate court below rejected the prayer of the petitioners to include the voter list, as to the date of birth of the defendant No.6 (D.W.2, Shahida Begum) as a proof of the real age of the said defendant, therefore, the impugned order has been passed without applying judicial mind and without properly considering the necessity of the evidence, therefore, the impugned order is liable to be set aside and the Rule should be made absolute.

The learned Advocate further submits that the voter list of (D.W.2, Shahida Begum) was a substantial document in the suit but it could not be filed at the time of the suit, however, it was submitted in the appellate stage and the learned appellate court committed an error of law by disregarding the provision of law under Order 41, Rule 27 read with Section 151 of the Code of Civil Procedure committed an error of law thus, the Rule should be made absolute.

The Rule has been opposed by the opposite party Nos.1 to 3.

Mr. Md. Mubarak Hossain, the learned Advocate appearing for the opposite party Nos.1 to 3 submits that the suit was filed by the present petitioners challenging the validity of the sale deed dated 03.08.1977 with the voter list and other relevant documents in support of

their case and the present opposite parties have also produced sufficient evidence in support of their case and after hearing the parties the learned trial court dismissed the suit filed by the present-petitioners after proper consideration and properly reading the given evidence and thereby came to a conclusion to dismiss the suit thereafter, an appeal was preferred challenging the said dismissal decree wherein the present-petitioners filed an application to include the voter list as an evidence with an ill motive in order to delay the producing of the appeal but this Rule has been obtained by misleading the court, therefore, the Rule should be discharged, The learned Advocate also submits that the defendant No.6 as(D.W.2, Shahida Begum) deposed in the court confirming her age of majority at the time of execution of the sale deed dated 03.08.1977, therefore, an application on the same matter in the appellate court should not be entertained upon the judgment and order of the appellate court below.

Considering the above submissions made by the learned Advocates appearing for the respective parties and also considering the revisional application filed under Order 41 Rule 27 read with Section Sec 115(1) of the Code of Civil Procedure along with the Annexures therein and also considering the supplementary-affidavit filed by the present-petitioners, it appears to this Court that the suit was filed challenging the validity of a sale deed and the said suit was dismissed by the learned trial court, the present-petitioners preferred an appeal against the said dismissal order and also filed an application for accepting a

voter list as an additional evidence in support the case of the present petitioners. After considering the evidence and the submissions of the respective parties the appellate court rejected the said application filed under Order 41 Rule 27 of the Code of Civil Procedure.

This Court has to take a decision whether the appellate court committed any error of law by rejecting the application or not. In order to take a decision, I have carefully examined the documents available in this case and I found that the present-petitioners had been trying to put forward an argument that the defendant No.6, Shahida Begum did not attain majority for execution of the sale deed dated 03.08.1977. In order to prove their case they have submitted all the documents including the birth certificate which is not presented before me and the lower courts' record was not called for, therefore, I am not benefited by the documents in support of the present-petitioners. I am also not benefited by the documents produced by the present-opposite parties. However, after examining the certified copy of the application under Order 41 Rule 27 read with Section 115 of the Code of Civil Procedure and also other documents. I consider that the present-petitioners attempted in the trial court by producing documents to ascertain the age of the defendant No.6, Shahida Begum which were considered by the learned trial court and came to a conclusion regarding the age of the said defendant No.6, Shahida Begum. The learned appellate court also examined the documents for the purpose of the present application for additional evidence. Both the courts concurrently found that the age of D.W.6

Shahida Begum was sufficient for execution of a sale deed in the year of 1977. Nevertheless, the petitioners may put forwarded their further documents at the time of hearing of the appeal by emphasizing their argument upon the said documents by showing the legality of the finding by the trial court. In view of the above, I consider that the appellate court committed no error of law by rejecting the application on the basis of the following finding:-

সার্বিক বিষয়াদি পর্যা-লাচনা করিয়া দেখা যায় যে, আপীলকারীপক্ষ যে বিষয় প্রমা-নর জন্য অএ দরখাস্ত দাখিল করিয়া-ছ তাহা ই-তাম-ধ্য বিজ্ঞ নিম্ন আদালত নিষ্পত্তি করিয়াছেন। ইহা ছাড়াও সাক্ষী ডি, ডব্লিউ-২ শহিদা বেগম বিজ্ঞ নিম্ন আদাল-ত প্রকাশ্য আদাল-ত হলফনামা পাঠা-ন্ত যে জবানবন্দি ও জেরা প্রদান করিয়া-ছেন তাহা নিম্ন আদালত তাহার রা-য় বিস্তারিত আ-লাচনা করিয়া-ছেন। ফ-ল আপীলকারী প-ক্ষর অএ আ-বদন বি-বচনার যুক্তি সংগত কারণ না থাকায় দরখা-স্তর প্রার্থনা নামনজুর করা হইল।

In view of the above discussions and after perusing the impugned order I do not find that the learned appellate court below committed any error of law by passing the impugned order. I am, therefore, not inclined to interfere into the impugned judgment and order passed by the appellate court below.

Accordingly, I do not find merit in the Rule.

In the result, the Rule is discharged.

The adinterim order of stay upon further proceeding of Title Appeal No.33 of 2009 and also a direction to maintain status-quo in respect of position and possession of the suit land are hereby recalled and vacated.

I also consider that the voter list is not necessary when the birth certificate was before the court for examination. Furthermore, such kind of evidence should not be allowed in an appellate stage with certain exception.

The learned Joint District Judge, court No.2, Lakshmipur is hereby directed to conclude hearing of the Title Appeal No.33 of 2009 within 6(six) months from the date of receipt of this order without allowing any necessary adjournment upon prayers of the respective parties.

The Section is directed to communicate this judgment and order to the concerned court immediately.